

WRITTEN IMPLEMENTATION REQUEST UNDER S.C. CODE SEC. 17-22-950(A)

To: the court
(THE SUMMARY COURT - MAGISTRATE OR MUNICIPAL - IN WHICH THE CHARGES WERE
BROUGHT, AND ITS LOCATION; that court's own office can confirm both)
At:

From: Maria-Alejandra O'Shaughnessy-Whitfield
1188 Upper Ashley Crossing Road, Apartment 14B, Charleston, South Carolina 29407-2214
Telephone: (843) 555-0199 ext. 4417 Email:
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Re: written implementation request - mandatory expungement order under S.C. Code Sec. 17-22-950(A)

Original docket or case number of the summary-court charge:
.....

Charge, worded exactly as the court record words it:
.....

How the charge ended (not guilty, dismissed, or nolle prossed), worded exactly as the record words it, and
the date it ended:
.....

Appeal expiration date for that disposition, from the court record:
.....

Date thirty days after the appeal expiration date (the statutory deadline under Sec. 17-22-950(C)):
.....

1. I was the accused person in the matter identified above. The charge was brought in this summary court,
it ended in a not guilty verdict, dismissal or nolle prosequi as stated above, and I was fingerprinted in
connection with it. This request is made on that ground; it is not a subsection (B) application and no
application fee attaches to it.

2. Under S.C. Code Sec. 17-22-950(A), on such a disposition the summary court shall immediately issue
an expungement order at no cost, obtain and verify the necessary signatures, and distribute the copies.
Under Sec. 17-22-950(C) the expungement must occur no sooner than the appeal expiration date and no
later than thirty days after it. That deadline has passed and the record remains unexpunged. My evidence
that it remains unexpunged (attach it - for example a dated background-check result):
.....
.....

3. THE REQUESTED ORDER: I ask this court to issue the expungement order Sec. 17-22-950(A) directs
for the matter identified above, at no cost, and to distribute it as the statute directs. If an objection was

transmitted under Sec. 17-22-950(F) in this matter, please tell me so in writing.

DATE SIGNATURE

(You sign and date this request personally. Nothing on this page is signed or dated for you.)

Route: obligation:decision-branch:SC:sc_17_22_950_summary:written_implementation_request

MOTION IN THE ORIGINAL SUMMARY CASE TO ENFORCE S.C. CODE SEC. 17-22-950(A)

USE THIS PAGE ONLY AFTER THE WRITTEN REQUEST. The recorded escalation is: first the written implementation request to the summary court; then this motion in the original summary case, only if the request does not result in the order. If the court refuses after this motion, or eligibility is disputed, the recorded next step is a lawyer - not another filing from this packet.

IN THE COURT
AT

(THE SAME SUMMARY COURT, IN THE ORIGINAL SUMMARY CASE)

STATE OF SOUTH CAROLINA,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Original docket or case number:

.....

MOTION TO ENFORCE S.C. CODE Sec. 17-22-950(A)

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, states: the charge in this matter was brought in this summary court; it ended in a not guilty verdict, dismissal or nolle prosequi; and the defendant was fingerprinted in connection with it.

How the charge ended, worded exactly as the court record words it, and the date it ended:

.....

Appeal expiration date, and the date thirty days after it (the statutory deadline):

.....

2. Under S.C. Code Sec. 17-22-950(A) the summary court shall immediately issue an expungement order at no cost on such a disposition, and under Sec. 17-22-950(C) the expungement must occur no later than thirty days after the appeal expiration date. The deadline has passed, the record remains unexpunged, and a written implementation request was made to this court. What this court's office said or did in response (state it in your own words, and attach a copy of your request):

.....

.....

3. THE REQUESTED ORDER: the defendant asks this court, in the original summary case, to enforce Sec. 17-22-950(A) by issuing the expungement order the statute directs for this matter, at no cost, and distributing it as the statute directs.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Ashley Crossing Road, Apartment 14B, Charleston, South Carolina
29407-2214

TELEPHONE: (843) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:decision-branch:SC:sc_17_22_950_summary:original_case_enforcement_motion

FILING INSTRUCTIONS

This packet is prepared for asking a South Carolina summary court to issue the mandatory Sec. 17-22-950(A) expungement order it did not issue.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE ONE SITUATION THIS PACKET IS FOR

A summary-court charge that ended in a not guilty verdict, dismissal or nolle prosequi, where you WERE fingerprinted: the summary court itself must immediately issue an expungement order at no cost, no later than thirty days after the appeal expiration date. This packet is only for the case where that deadline passed and the order did not issue.

WHAT YOU DO, IN ORDER

STEP ONE. Confirm this packet is yours. If you were NOT fingerprinted, stop: the subsection (B) application (form SCCA 223E) is a different route, and the recorded rule forbids using either route in place of the other.

STEP TWO. Check the recorded statutory bars: a dismissal at a preliminary hearing, or related charges from the same course of events still pending. If either is true, stop and get legal help.

STEP THREE. From the court record, establish the disposition date, the appeal expiration date, and the date thirty days after it. Ask the summary court whether a prosecution or law-enforcement agency gave written notice of objection within thirty days of the disposition - if one did, a General Sessions judge decides, and that is a lawyer's setting.

STEP FOUR. Complete and send the WRITTEN IMPLEMENTATION REQUEST to the summary court in which the charges were brought. Ask that court's office how it accepts delivery, and use that method.

Pay nothing: the recorded rule is that the order issues at no cost.

STEP FIVE. Only if the request does not result in the order, complete and file the ENFORCEMENT MOTION in the original summary case.

STEP SIX. Sign and date each page yourself.

WHAT THIS PACKET MUST NEVER BE USED FOR

- As a subsection (B) application. SCCA 223E belongs to the non-fingerprinted branch, and the recorded rule is that it must not be repurposed when the court simply failed to enter the automatic order.
- To open a new solicitor application. The recorded rule: do not open one merely because the summary court missed its duty.
- After an objection under Sec. 17-22-950(F), or after a refusal, or where eligibility is disputed. Those belong to a lawyer.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- you were not fingerprinted in connection with the charge;
- the dismissal occurred at a preliminary hearing;

- related charges arising from the same course of events are still pending;
- an agency objected under Sec. 17-22-950(F), or the court refuses after the motion, or eligibility is disputed;
- the charge was dismissed on completion of a diversion programme - that belongs to the solicitor route;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

This is a prepared set of composed enforcement instruments for one recorded failure branch. It is not an official form, not legal advice, not filed for you, and not a promise that the summary court will act. No fee is asked anywhere in it.

Route: obligation:decision-branch:SC:sc_17_22_950_summary:written_implementation_request